



The City of
Saline

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www.cityofsaline.org

CITY OF SALINE INSTRUCTIONS TO BIDDERS

BID SUBMITTALS:

An ORIGINAL and one (1) copy of each bid must be submitted in hard copy submissions. The original may be clipped but should not be stapled or bound, the copy may be stapled or bound. No other distribution of the bids will be made by the Contractor. Bids must be signed by an official authorized to bind the Contractor to its provisions. If emailed bids are allowed, they are accepted only if sent to bids@cityofsaline.org, with a subject line stating "SEALED BID, Name of Bid, and Bid number" before the due date and time.

FAILURE TO SUBMIT PRICING ON THE BID FORM PROVIDED BY THE CITY OF SALINE MAY CAUSE THE BID TO BE CONSIDERED NON-RESPONSIVE AND INELIGIBLE FOR AWARD.

CHANGES TO THE BID/ADDENDUM:

Should any prospective Bidder be in doubt as to the true meaning of any portion of the bid, or should the Bidder find any patent ambiguity, inconsistency, or omission therein, the Bidder shall make a written request (via email) for official interpretation or correction. Such request shall be submitted to the staff member indicated on the bid document.

Such interpretation or correction, as well as any additional Bid provisions that the City may decide to include, will be made as an addendum, which will be posted on the MITN website at www.mitn.info, and the City website at www.cityofsaline.org under the Bids and Purchasing page. Any addendum issued by the City shall become part of the bid and subsequent contract and shall be taken into account by each bidder in preparing its bid. Only written addenda are binding; it is the Bidder's responsibility to be sure they have obtained all addenda. Receipt of all addenda must be acknowledged on the bid form.

The City reserves the right to cancel or to reissue the bid in whole or in part, prior to execution of a contract.

SUBMISSION OF BID:

Bids must be submitted in a sealed envelope, box, or package, and clearly marked with: Bid Title, Bid number, Respondent's name, address, phone, and contact name. Failure to do so may result in a premature opening or failure to open such proposal.

To be considered, sealed bids must arrive at the City Clerk's Office on or before the specified date and time. There will be no exceptions to this requirement. The City of Saline time stamp will determine the official receipt time. Contractors mailing bids should allow ample time to ensure the timely delivery of their bid, Contractors assume the risk for the method of delivery chosen. The City assumes no responsibility for delays caused by any delivery service. Bids received after the closing date and time will not be accepted or considered. Electronic submissions may be allowed as dictated in the bidding documents, through the MITN website (bidnet.com) or emailed bids only if sent to bids@cityofsaline.org, with a subject line stating

“SEALED BID, Name of Bid, and Bid number” before the due date and time. Any email subject lines not clearly stating the above-mentioned requirement could result in a premature opening or a failure to open the proposal. Faxed or telephone bids are not acceptable. The City of Saline shall not be held responsible for lost or misdirected bids. The City reserves the right to postpone a bid opening for its own convenience.

All bids must include the provided cover sheet in Exhibit A of the bid package. All information must be clearly marked on the cover sheet, including pricing. The City of Saline reserves the right to disqualify a bid for not providing the requested cover sheet, nor the completion of the cover sheet. All prices and notations must be typed or printed in ink. No erasures are permitted; mistakes may be crossed out and corrections must be initialed in ink by the person signing the bid. Bids must be signed by an Authorized Representative of the submitting Company on the enclosed form. Bids must show unit and total prices if requested. In case of mistakes in price extension, unit pricing shall govern.

Correction or withdrawal of inadvertently erroneous bids before or after bid opening, or cancellation of awards or contracts based on such bid mistakes, may be permitted at the sole discretion of the City of Saline. Mistakes discovered before bid opening may be modified or withdrawn by written notice received in the office designated in the invitation for bids, prior to the time set for bid opening. After bid opening, corrections in bids shall be permitted only to the extent that the bidder can show by clear and convincing evidence, as determined by the Purchasing Department, that a mistake of nonjudgmental character was made.

Failure to include in the bid all information requested may be cause for rejection of the bid.

Bidders are expected to examine all specifications and instructions. Failure to do so will be at the bidder's risk.

Any samples, CDs, DVDs or any other items submitted with your bid will not be returned to the contractor.

No bid will be accepted from, or contract awarded to, any person, firm, or corporation that is in arrears or is in default to the City Saline upon any debt or contract, or that is in default as surety or otherwise, or failed to perform faithfully any previous contract with the City.

All pages and the information requested herein shall be furnished completely in compliance with instructions. The manner and format of submission is essential to permit prompt evaluation of all bids on a fair and uniform basis. Unit prices shall be submitted if space is provided on the bid form. In cases of mistakes in extension, the unit price shall govern. Accordingly, the City reserves the right to declare it non-responsive and reject an incomplete bid if material information requested is not furnished, or where indirect or incomplete answers or information is not provided. Any exceptions to the specifications must be noted on the bid form.

USE OF THE CITY LOGO IN YOUR BID OR IN ANY OTHER MANNER IS PROHIBITED.

EXCEPTIONS:

The City will not accept changes or exceptions to the bid documents/specifications unless the Contractor indicates the change or exception on the “Vendor Comments and Deviations” section of the bid form, Exhibit C. If Contractor neglects to make the notation on the bid form, the

change or exception will not be included as part of the contract. The original terms, conditions and specifications of the bid documents will be applicable during the term of the contract.

BIDDER'S QUALIFICATIONS:

Bidders must be properly licensed under the state laws governing their respective trades. A Performance Bond, separate Labor and Material Payment Bond, and Insurance in a form acceptable to the Owner will be required of the successful Bidder. Bidders shall meet qualifications indicated in the Contract Documents.

Submission of a bid shall serve as evidence that the Bidder has confirmed that the Bidder is properly qualified to perform the work and is capable of obtaining the required bonds and insurance. Bidders shall, if requested, submit evidence in affidavit form of applicable experience, licensure, approvals, and certifications, adequate financial resources, work in hand capacity, adequate organization, and acceptable past performance. Bidder's qualification information shall be considered privileged and confidential.

BID ACCEPTANCE AND EVALUATION:

Bids shall be evaluated based on the requirements set forth in the invitation for bids, which may include criteria to determine acceptability such as inspection, testing, quality, workmanship, experience, delivery, warranty, and suitability for a particular purpose. Bids which do not comply with all criteria set forth in the invitation to bid may be subject to disqualification, at the discretion of the City Manager.

In cases where items are requested by a manufacturer's name, trade name, catalog number or reference, it is understood that the bidder/proposer intends to furnish the item so identified or an item of "equal" quality and value as determined by the City of Saline.

Reference to any of the above is intended to be descriptive, but not restrictive, and only indicates articles that will be satisfactory. Bids of "equal" quality and value will be considered, provided that the bidder states in his/her bid what he/she proposed to furnish, including literature, or other descriptive matter which will clearly indicate the character of the item covered by such bid.

The City Manager hereby reserves the right to approve as an equal any item proposed which contains minor or major variations from specification requirements, but which may comply substantially therewith.

Tie bids that are equal in all aspects shall be awarded to the vendor whose headquarters is closest to the City of Saline delivery point. To determine the location of a vendor, the City of Saline will use the address on file with the State of Michigan as the vendor's Registered Office Address as of the day the solicitation request was first issued by the City of Saline. If a vendor does not have a Registered Office Address with the State of Michigan, that vendor will be deemed to be the vendor at the greatest distance from the City of Saline. If multiple vendors are not registered with the State of Michigan, the state or City of Saline of incorporation will be used to determine the vendor's location.

CONTRACT AWARD:

The contract shall be awarded by appropriate notice to the responsible and responsive bidder whose bid meets the requirements and response selection criteria set forth in the invitation for bids. Nothing in the award process shall prevent Treasury from acting in the City of Saline's best

interest when making the bid award, including awarding the bid to another low bidder, using a best value-based selection process.

No contract or purchase order shall knowingly be entered into with any business or entity which is in bankruptcy or receivership. In the event that the bid for a project exceeds available funds, the Treasurer is authorized to negotiate an adjustment of the bid price when time or economic considerations preclude re-solicitation of work of a reduced scope, in order to bring the bid within the amount of available funds or recommend a budget amendment.

The contract will be awarded to that responsible, responsive bidder whose bid, conforming to this solicitation, will be most advantageous to the City of Saline. Qualifications, experience, references, comparable projects, price, previous experience with vendor/contractor, delivery, and other factors will be considered in the evaluation process and award of contract. The City reserves the right to accept any or all alternative bids and award the contract to other than the lowest bidder, to waive any irregularities or informalities or both; to reject any or all bids; and in general, to make the award of the contract in any manner deemed by the City, in its sole discretion, to be in the best interest of the City of Saline.

PROPRIETARY INFORMATION AND PUBLIC DISCLOSURE:

Materials submitted in response to this competitive procurement shall become the property of the City. All proposals received shall remain confidential until the deadline for submission of bids or proposals has expired, as defined by Michigan statute (MCL 15.243 (1)(i), the Freedom of Information Act).

GENERAL SPECIFICATIONS AND REQUIREMENTS:

- A. **TITLE VI:** The City of Saline, MI, in accordance with Title VI of the Civil Rights Act of 1964 and Title 49, Code of Federal Regulations, hereby notifies all bidders that minority business enterprises will be afforded full opportunity to submit bids in response to this invitation and will not be discriminated against on the grounds of race, color, sex or national origin in consideration of a bid award.
- B. **NON-IRAN LINKED BUSINESS:** By signing this bid document, I certify and agree on behalf of myself and the company submitting this proposal the following: (1) that I am duly authorized to legally bind the company submitting this proposal; and (2) that the company submitting this proposal is not an “Iran linked business,” as that term is defined in Section 2(e) of the Iran Economic Sanctions Act, being Michigan Public Act No. 517 of 2012; and (3) That I and the company submitting this proposal will immediately comply with any further certifications or information submissions requested by the City in this regard.
- C. **NON-DISCRIMINATION ORDINANCE:** The successful firm shall comply with the requirements of the City of Saline Ordinances, Chapter 46, Article 1, Nondiscrimination, and the Elliot Larson Civil Rights Act, 1976 PA 453, as amended, MCL 37.2101 *et seq.*, the Persons with Disabilities Civil Rights Act, 1976 PA 220, as amended, MCL 37.1101 *et seq.*, Chapter 46, sections 46- 1 through 46-10 of the Saline City Code, and all other federal, state, and local fair employment practices and equal opportunity laws and covenants that it shall not discriminate against any employee or applicant for employment, to be employed in the performance of this Agreement, with respect to his or her hire, tenure, terms, conditions, or privileges of employment, or any matter directly or indirectly related to employment, because of his or her race, religion,

color, national origin, age, sex, height, weight, marital status, sexual orientation, gender identity/expression, or physical or mental disability that is unrelated to the individual's ability to perform the duties of a particular job or position.

- D. CONFLICT OF INTEREST:** The Contractor warrants that to the best of the contractor's knowledge, there exists no actual or potential conflict between contractor and the City, and its services under this request, and in the event of change in either contractors private interests or services under this request, contractor will inform the City regarding possible conflict of interest which may arise as a result of the change. The contractor also affirms that, to the best of the contractor's knowledge, there exists no actual or potential conflict between a City employee and the contractor.
- E. RESPONSIBLE CONTRACTOR POLICY:** All bidders are encouraged to review the Responsible Contractor Policy of the City of Saline, (Exhibit B of this bidding document), prior to completing this Pre-qualifying Questionnaire. Any bid in excess of \$100,000 is required to complete this screening, except under certain emergency procurement protocols.
- F. PAYMENT REQUIREMENTS:** Chosen vendor must provide itemized invoices that include backup documents for materials, time, and labor for all charges. Unsubstantiated charges may not qualify for payment, at the discretion of the City Treasurer.
- G. FINANCIAL STATEMENTS:** Bids for construction or professional services, provide financial statements from the last two (2) years for any bid that totals less than \$100,000. For any bid that totals over \$100,000, provide the last three (3) years of financial statements.
- H. REFERENCES:** The contractor must provide three (3) professional references including: name, company name, nature of services performed, address, contact information.

COST PROPOSAL:

Use the cover sheet provided in Exhibit A for the official bidder price.

PUBLIC LIABILITY AND PROPERTY DAMAGE INSURANCE:

The Contractor shall take out and maintain during the life of this contract, such Public Liability and Property Damage Insurance as shall protect himself, and any subcontractor performing work covered by this contract, from claims for damages for personal injury including accidental death, as well as from claims for property damages, which may arise from operations under this contract, whether such operations be by himself or by any subcontractor or by anyone directly or indirectly employed by either of them, and the amounts of such insurance shall be as follows and certificate approved by City Attorney:

Liability Coverage Parts	Limit of Liability	Deductible
Municipal General Liability Coverage	\$5,000,000	\$10,000
Public Officials Liability Coverage	\$5,000,000	\$10,000
Law Enforcement Liability Coverage	\$5,000,000	\$10,000
Employee Benefit Liability Coverage	\$1,000,000	\$10,000
Automobile Liability Coverage	\$5,000,000	\$0
Comprehensive and Collision Coverage	Per Schedule	Per Schedule
Combined Liability Policy Limit	\$5,000,000	
Cyber Liability and Data Breach Response Coverage No Coverage	No Coverage	N/A

The City of Saline shall be named as “***endorsed additional insured***” on the certificate of insurance. Proof of insurance must be provided prior to execution of the contract. If there are any changes in vendors insurance, the update must be provided to the City in 10 days, if this is not done, it could result in voiding the contract. The undersigned also agrees that they have visited the site, understands all the requirements of the contract, and will provide adequate personnel, equipment, forms, materials, traffic control, and tools to complete the work.